

Twelve Per Cent of a Statute Book: The Enacted Law and the Applied Law in 50,666 Judgments

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Abstract

Empirical work on legislation measures what states enact. Empirical work on courts measures what judges decide. The two are rarely joined, because doing so needs both corpora for one jurisdiction at article level, and those do not usually exist together. This article joins them for Saudi Arabia: 15,855 articles across 291 instruments, and 50,666 judgments in full text, published by the Ministry of Justice through an open interface. 106,337 statutory citations are extracted from the judgments and matched to the instruments, 4.4 per cent failing to match. Three findings follow. First, the applied law is a small fraction of the enacted law: 1,977 articles are cited at least once, 12.5 per cent of the statute book, and 178 of 291 instruments are never cited at all. Second, what is applied is overwhelmingly procedural — 88.2 per cent of citations — and the single most-cited provision, cited 12,956 times, governs which administrative unit may carry out a procedural step. Third, and against the obvious explanation, the narrowing is not imposed by the parties: separating each judgment into pleadings and reasoning shows the court citing procedure at 92.3 per cent against 83.5 per cent in the arguments put to it, and drawing on 74 instruments where the bar draws on 84. A fourth result is a null: amendment activity predicts neither citation nor its absence. The enacted and the applied appear to run in parallel rather than in dialogue.

Keywords: empirical legal studies; legislation; judicial citation; legal informatics; open government data; Saudi Arabia

1 Introduction

2 Related work

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3.2 The judgment corpus

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4.2 Matching an instrument

4.3 Reading an article number

4.4 Separating the voices

5 Results

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5.2 How concentrated the applied part is

5.3 Who narrows: the bar or the bench

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Declarations